

		A defendant may file a motion for judgment on the pleadings only after the defendant has already filed his or her answer to the complaint and the time for the defendant to demur to the complaint has expired. (Code Civ. Proc., § 438, subd. (f)(2).) Cross-Defendants have not filed an answer the Fahil’s Cross-Complaint. The Court notes it appears Biltagi attempted to file an answer on or about August 11, 2025; however, the filing was rejected by the Electronic Filing Clerk. There is no showing Cross-Defendants attempted to file an answer after Biltagi’s answer was rejected. Accordingly, the unopposed motion is denied without prejudice. Cross-Defendants shall give notice.
8.	2022-1264619 Kamell vs. Habashi	The Court denies Defendant/Cross-Complainant Yvette Habashi’s expansive Motion for summary judgment of Rafik Y. Kamell’s Complaint of her own Second Amended Cross-Complaint (SACC). As an initial matter, Kamell’s opposition was filed late. The Motion was continued, which allowed time for the reply. (ROA 526.) However, the opposition consists of a 57-page memorandum that violates the 20-page limit under California Rules of Court, rule 3.1113(d). Thus, the Court does not consider any arguments after page 20. The reply, too, was late. The moving party’s points and authorities in reply to the opposition must be served and filed at least 11 days before the date set for the hearing (unless the court shortens the period for good cause shown). (CCP § 437c(b)(4).) Here, the reply was filed with only 9 days’ notice. <u>Objections</u> Kamell’s evidentiary objections are overruled. <u>Legal Standards</u> “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Ibid.</i>) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to

the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) The motion may not be granted or denied on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Where plaintiff seeks summary judgment, the burden is to produce admissible evidence on each element of a "cause of action" entitling him or her to judgment. (CCP § 437c(p)(1); *see Hunter v. Pacific Mechanical Corp.* (1995) 37 Cal.App.4th 1282, 1287, (disapproved on other grounds by *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826); *S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.* (2010) 186 Cal.App.4th 383, 388.)

This means that plaintiffs who bear the burden of proof at trial by a preponderance of evidence must produce evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not. "[O]therwise, he would not be entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 851; *LLP Mortg. v. Bizar* (2005) 126 Cal.App.4th 773, 776—burden is on plaintiff to persuade court there is no triable issue of material fact.)

At that point, the burden shifts to defendant (or cross-defendant) "to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto." (CCP § 437c(p)(1).)

A motion for summary judgment must be supported by evidence establishing the moving party's right to the relief sought. (*Regents of Univ. of Calif. v. Sup.Ct. (Roettgen)* (1996) 41 Cal.App.4th 1040,

1044.) Such evidence may consist of admissions by the opposing party. (CCP § 437c(b)(1).)

Thus, “when discovery has produced an admission or concession on the part of the party opposing summary judgment which demonstrates that there is no factual issue to be tried,” controverting affidavits submitted by that party may be disregarded. (*D’Amico v. Board of Med. Examiners* (1974) 11 Cal.3d 1, 20-22; see *Union Bank v. Sup.Ct. (Demetry)* (1995) 31 Cal.App.4th 573, 580; CCP § 2033.410, RFA admissions bind the admitting party on a summary judgment motion.)

Merits

Here, Habashi moves for summary judgment – not adjudication – of every claim in Kamell’s Complaint and in her own SACC.

When the notice of motion seeks only summary judgment, the presence of any triable issue requires denial of the motion. The court may not summarily adjudicate claims or defenses as to which no triable issue was raised unless requested in the notice of motion. (*Homestead Sav. v. Sup.Ct. (Dividend Develop. Corp.)* (1986) 179 Cal.App.3d 494, 498 (citing text).) The reason, of course, is that the opposing party may have decided to raise only one triable issue of fact in order to defeat the motion, without intending to concede the other issues. It would be unfair to grant a summary adjudication order unless the opposing party was on notice that particular claims or defenses in the case might be summarily adjudicated even though summary judgment was denied. (*Gonzales v. Sup.Ct. (General Motors)* (1987) 189 Cal.App.3d 1542, 1546 (citing text).) Thus, the Court cannot treat this Motion as one for summary adjudication of any specific claim and must resolve the Motion as a whole. Any single disputed fact requires a denial of the entire Motion.

Complaint

- (1) defamation;
- (2) negligent infliction of emotional distress;
- (3) intentional infliction of emotional distress;
- (4) interference with business advantage;
- (5) extortion;
- (6) invasion of privacy/false light; and,
- (7) declaratory relief.

		<u>SACC</u> (1) Fraud / misrepresentation (2) Legal malpractice (3) Breach of contract (4) Conversion / misappropriation (5) IIED (6) “retaliation” (see ROA 448) (7) Defamation (8) Extortion (9) Abuse of process. The deemed admitted order for Requests for Admissions, Set Two, attached as Exhibit 31 to the Motion, remove issues from trial that have been deemed admitted; but the order does not remove issues not directly admitted. For example, RFA no. 1 admitted that Kamell altered the retainer agreement, but does not indicate how it was altered. Kamell disputes the specific alterations, which create a triable issue of material fact. Thus, triable issues of disputed fact exist as to some elements of the claims. Moreover, Habashi has not met her burden to show the damages in the SACC in addition to return of \$55,945.61. The SACC asks for compensatory damages in addition to restitution. Habashi also asks for injunctive relief, which is not supported by the Motion. Thus, while some of the claims in the Complaint and SACC could have been summarily adjudicated, the Motion as a whole for summary <i>judgment</i> must be denied. Habashi is ordered to serve notice.
9.	2024-1433160 COVARUBIAS vs. FCA US, LLC.	Defendant FCA US, LLC’s demurrer to Plaintiff Mary Covarubias’ First Amended Complaint is sustained with 30 days leave to amend. A demurrer presents an issue of law regarding the sufficiency of the allegations set forth in the complaint. (<i>Lambert v. Carneghi</i> (2008) 158 Cal.App.4th 1120, 1126.) The challenge is limited to the “four corners” of the pleading (which includes exhibits attached and incorporated therein) or from matters outside the pleading which are judicially noticeable under Evidence Code §§ 451 or 452. Although California courts take a liberal view of inartfully drawn complaints, it remains essential that a complaint set forth the actionable facts relied upon with sufficient precision to inform the defendant of what plaintiff is complaining, and what remedies are being sought. (<i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413.) On demurrer, a complaint must be liberally construed. (CCP § 452; <i>Stevens v. Superior Court</i> (1999) 75 Cal.App.4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be